

Chapter 10

MOBILE HOMES, RECREATIONAL VEHICLES AND MOBILE HOME AND RECREATIONAL VEHICLE PARKS*

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ARTICLE I. IN GENERAL

Sec. 10-1. Definitions.

The following words, terms and phrases, when used in this chapter, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Mobile home is a generic term applying to all movable or portable dwelling units which:

- (1) Are built on a chassis;
- (2) Do not have their own motive power;
- (3) Are connected to utilities when in use;
- (4) Are designed for year-round living;
- (5) Have no permanent foundation; and
- (6) Are not eligible to be licensed, registered and insured for highway use.

*Cross references—Board of health, § 2-71 et seq.; planning board, § 2-116 et seq.; electrical code, § 5-126; department of planning and development, § 2-261 et seq.; alarm systems, Ch. 3; buildings and building regulations, Ch. 5; housing, Ch. 7; determination of hazardous buildings, § 7-27; licenses and business regulations, Ch. 8; solid waste, Ch. 14; subdivisions, Ch. 17; utilities, Ch. 20; zoning, Ch. 22; signs, § 22-596 et seq.

Mobile home park shall mean a tract of land of ten (10) acres or more, designed, maintained or intended for the purpose of renting or leasing a location or accommodations for two (2) or more mobile homes, including all buildings used or intended for use as a part of the equipment or accessories thereof, whether or not the same or any part, is held or operated for gain, excepting, however, automobiles or mobile home sales lots on which unoccupied mobile homes are parked for exhibition or sale.

Operator shall mean the owner, lessee or any other person lawfully in possession of a mobile home park, whether an individual, partnership, corporation, or other business entity, and their agents, employees or legal representatives.

Persons in possession shall mean any owner, lessee, bailee or any other person lawfully in possession of a recreational vehicle.

Recreational vehicle is a generic term applying to the following specific vehicle types; all of which, alone or in combination with their pulling or carrying vehicles, are eligible to be licensed or registered and insured for highway use:

- (1) *Camping trailer* shall mean a folding or collapsible vehicular structure designed as a temporary dwelling for travel, camping, recreational and vacation uses.
- (2) *Motor home* shall mean a vehicular structure designed as a temporary dwelling for travel, camping, recreational and vacation uses, as an integral part of a self-propelled vehicle.
- (3) *Travel trailer* shall mean a rigid vehicular structure designed as a temporary dwelling for travel, camping, recreational and vacation uses.
- (4) *Truck camper* shall mean a portable structure designed to be transported on a powered vehicle as a temporary dwelling for travel, camping, recreational and vacation uses.

Street shall mean any public street, highway, road or passageway.

(Ord. No. 166, § 2, 11-9-77)

Cross reference—Definitions and rules of construction generally, § 1-2.

Sec. 10-2. Purpose.

The purpose of this chapter is to promote the public health, safety and welfare by regulating the location and use of recreational vehicles, mobile homes and mobile home parks.
(Ord. No. 166, § 1, 11-9-77)

Sec. 10-3. Applicability.

The provisions of this chapter shall not apply to any permit in effect at the time of its passage. This chapter shall apply to renewals of any present permit, new applications for permits and expansions of present permits. Permits issued prior to November 9, 1977 shall be governed by the ordinance in effect at the time of issue.
(Ord. No. 166, § 11, 11-9-77)

Sec. 10-4. Penalties.

It is unlawful for any person to violate any provision of this chapter. In addition, the building inspector, for all permits except mobile home permits, and the city council, for mobile home permits, may, after notice and hearing, revoke any permit.
(Ord. No. 166, § 13, 11-9-77)

Secs. 10-5–10-25. Reserved.

ARTICLE II. ADMINISTRATION

Sec. 10-26. Notification to city assessor.

The building inspector shall notify the city assessor of any permit issued under this chapter.
(Ord. No. 166, § 9, 11-9-77)

Cross reference—Building inspector, § 5-76 et seq.

Sec. 10-27. Enforcement.

The building inspector shall enforce this chapter. For purposes of enforcement, the building inspector, his designees, and any other city employee at his request, shall have authority to inspect

any recreational vehicle, mobile home or mobile home park, for which a permit has been issued under this chapter.
(Ord. No. 166, § 10, 11-9-77)

Sec. 10-28. Appeals.

Any person aggrieved by the denial of any application or the issuance of a permit under this chapter, shall have a right of appeal to the city council within thirty (30) days of the denial or issuance and not thereafter.
(Ord. No. 166, § 12, 11-9-77)

Secs. 10-29–10-45. Reserved.

ARTICLE III. MOBILE HOMES*

Sec. 10-46. Applicability.

The provisions of this article shall be applicable to mobile homes but not to recreational vehicles.
(Ord. No. 166, § 3, 11-9-77)

Sec. 10-47. Location outside parks.

No person shall park, store, or locate a mobile home within the city outside of a mobile home park except as herein provided.

- (1) Subject to applicable traffic and parking laws, ordinances and regulations, a mobile home may be temporarily stopped or parked on any street or in any parking lot, whether public or private, for a reasonable time.
- (2) A mobile home may be located on a sales lot, provided it is for sale and not occupied as a residence.
- (3) A mobile home may be stored in an enclosed garage, barn or other suitable building, provided it is not occupied as a residence.

***Cross references**—Buildings and building regulations, Ch. 5; electrical code, § 5-126; plumbing standards, § 5-141; mechanical standards adopted, § 5-161 et seq.; housing, Ch. 7; determination of hazardous buildings, § 7-27.

- (4) The owner of any land may place thereon a mobile home for his own use and occupancy, or for rent or lease as a single-family residence, only after a permit has been issued by the building inspector. Upon application by the owner, a permit shall be issued by the building inspector provided the proposed mobile home site meets the following standards:
 - a. Mobile homes shall be located only in zones where such use is permitted by the zoning ordinance.
 - b. The proposed site for the mobile home shall meet the lot size and area, yard, lot coverage and maximum residential density requirements contained in zoning ordinance sections 22-148 through 22-151 unless a variance has been granted by the zoning board of adjustment, and shall have a water supply and a sewage disposal system which meet all city, state and federal regulations and are approved by the city health officer.
- (Ord. No. 166, § 4, 11-9-77)

Sec. 10-48. Permit for single mobile home.

The following provisions shall govern the application and issuance of permits required by this chapter:

- (1) Any owner of a mobile home may make application to the building inspector for a permit on forms provided by the building inspector.
- (2) The building inspector shall collect a fee of which is on file in the city manager's office for each application made.
- (3) Within three (3) working days after receipt of such application, the building inspector shall determine whether the standards specified in the applicable sections of this chapter will be met. If the building inspector determines that such standards will be met, he shall issue a permit; otherwise, he shall deny such application, subject to the applicant's right to appeal such decision as hereinafter provided.
- (4) Each permit issued shall be entitled "Permit for Single Mobile Home"; shall contain the name and address of the owner of the mobile home; and, if different, the owner of

the lot; the street address for the lot; and, shall be signed and dated by the building inspector, or his designee.
(Ord. No. 166, § 7, 11-9-77)

Secs. 10-49–10-65. Reserved.

ARTICLE IV. MOBILE HOME AND RECREATIONAL VEHICLE PARKS*

DIVISION 1. GENERALLY

Sec. 10-66. Applicability.

The provisions of this article shall be applicable to both recreational vehicles and mobile homes when located in a mobile home park.
(Ord. No. 166, § 5, 11-9-77)

Sec. 10-67. Compliance.

No person shall establish, maintain or operate a mobile home park within the city except as provided in this article.
(Ord. No. 166, § 6, 11-9-77)

Sec. 10-68. Location of mobile homes, recreational vehicles restricted.

After a permit for operating a mobile home park has been issued, mobile homes and recreational vehicles may be located therein provided the following regulations are observed:

- (1) No mobile home shall be occupied until the building inspector has inspected and approved the completed installation and has issued a permit. This requirement does not apply to recreational vehicles unless water, sewer and electrical connections are made.
- (2) No mobile home shall be installed in a lot approved for recreational vehicles.

***Cross reference**—Zoning district regulations, § 22-131 et seq.

- (3) No recreational vehicle shall be located in a lot approved for mobile homes unless the standards set by section 10-87(6) are met or water, sewer and electrical connections are made.
- (4) No mobile home or recreational vehicle shall be parked within twenty (20) feet of any street, or in such manner as to obstruct any passageway, for vehicles or people.
- (5) No mobile home or recreational vehicle shall be permitted to remain in the mobile home park unless a fully operational lot, meeting the standards of section 10-87(5) or (6) is available and assigned to it.

(Ord. No. 166, § 6(c)(1-5), 11-9-77)

Sec. 10-69. Register.

The operator shall maintain a register of all mobile homes and recreational vehicles which use the mobile home park. Such register shall contain the following information:

- (1) Name and permanent address of each occupant.
- (2) License number for all recreational vehicles.
- (3) Name, model, year of manufacture and serial number for each mobile home or recreational vehicle.
- (4) Body length, overall length and weight for each mobile home.
- (5) Lot number to which assigned.
- (6) Last prior location for each mobile home.
- (7) Date of arrival, estimated length of stay and actual date of departure.

(Ord. No. 166, § 6(c)(7), 11-9-77)

Sec. 10-70. Certain information for assessor.

The operator shall furnish the city assessor, in such manner as the city assessor shall direct, the following information:

- (1) A complete list of all occupants of the mobile home park, on or before the fifth day of each month, if new occupants have arrived since the date of the last report.

- (2) Any transfers of title to mobile homes located in the mobile home park.
 - (3) The information contained on the register required by section 10-69 for each mobile home, within ten (10) days of its arrival.
- (Ord. No. 166, § 6(c)(8), 11-9-77)

Sec. 10-71. Report of departures.

The operator shall report to the city tax collector any contemplated departures of mobile homes. Such report shall be made when he learns of the contemplated departure, but no later than the date of the actual departure.

(Ord. No. 166, § 6(c)(9), 11-9-77)

Sec. 10-72. Access for inspections.

The operator shall, at all reasonable times, provide, to city officials, free access to all areas of the mobile home park for purposes of conducting inspections as required by this chapter and other city ordinances.

(Ord. No. 166, § 6(c)(10), 11-9-77)

Sec. 10-73. Waste containers, disposal.

(a) Operators shall require, as a condition of continued occupancy in their mobile home park, that each mobile home and recreational vehicle have adequate containers for waste; that these containers be covered at all times; and that the containers be maintained in a sanitary manner. Other means of waste disposal may be approved by the city health officer, provided, all city, state and federal regulations are met.

(b) Operators shall provide regular and adequate waste collection and disposal.

(Ord. No. 166, § 6(c)(11, 12), 11-9-77)

Sec. 10-74. Notice of communicable diseases.

The operator shall promptly notify the city health officer of any known or suspected communicable disease within the mobile home

park and shall enforce any quarantine imposed by any physician or the city health officer.

(Ord. No. 166, § 6(c)(13), 11-9-77)

Sec. 10-75. Open fires restricted.

The operator shall not permit open fires in the mobile home park except as allowed by a permit of the city fire chief.

(Ord. No. 166, § 6(c)(14), 11-9-77)

Secs. 10-76–10-85. Reserved.

DIVISION 2. OPERATION PERMIT

Sec. 10-86. Required.

Prior to establishing, maintaining or operating a mobile home park in the city, the operator shall obtain a permit as provided in this division.

(Ord. No. 166, § 6(a), 11-9-77)

Sec. 10-87. Precedents to issuance.

A permit for a mobile home park shall be issued by the building inspector, provided the operator's application has been approved by the city council. Prior to submitting the operator's application to the city council, the building inspector shall determine that the proposed mobile home park:

- (1) Will be located in a zone where such use is permitted by the zoning ordinance.
- (2) Will meet the area, lot size and area, yard, lot coverage, maximum residential density, water supply and sewage disposal requirements contained in the zoning ordinance, unless a variance has been granted by the zoning board of adjustment.
- (3) Has been approved by the planning board under its subdivision regulations and the site plan ordinance.
- (4) Will be located on a site which is well drained, where the drainage from the site will not endanger public health; will

be completely removed from marshes, swamps or other potential breeding places for insects and rodents; and, which will contain sufficient area to accommodate:

- a. Individual lots for the number of mobile homes and/or recreational vehicles approved.
- b. Adequate streets, highways and passageways.
- c. Adequate parking areas for motor vehicles.
- d. Open areas so that no mobile home is closer than one hundred fifty (150) feet to an existing dwelling on adjoining property.

(5) Will, for lots intended for mobile homes, meet the following standards:

- a. Each lot shall provide a separate connection for water, sewer and electricity, which conforms to the building code.
- b. The city water system shall be used as the water supply.
- c. The sewer connection shall be at least three (3) inches in diameter and be capable of a watertight and odor-free seal when not in use. Where the city sewer system is available, such sewer shall be used. Where the city sewer system is not available, the sewer connection shall be to a sewage disposal system which meets standards set by the city, state and federal regulations and be approved by the city health officer.

(6) Will, for lots intended for recreational vehicles, meet the standards set by the state division of public health services sanitary laws and regulations for recreational camping parks.

(7) Will have adequate streets which shall be well drained, hard surfaced (graveled or paved) and well-maintained.

(Ord. No. 166, § 6(b), 11-9-77)

Sec. 10-88. Application.

Any proposed operator may make application to the building inspector for a permit required by this division on forms provided by the building inspector. Such forms shall require such informa-

tion as the building inspector shall deem necessary, including as a minimum:

- (1) Name and address of the proposed mobile home park, name and address of the proposed operator and all persons, or legal entities, having any legal interest in the proposed mobile home park.
 - (2) Location and legal description of the area to be included in the proposed mobile home park.
 - (3) The date of approval, and a copy of:
 - a. Any special exception and/or variance granted by the zoning board of adjustment.
 - b. Any subdivision and/or site plan approval by the planning board.
 - (4) Details of the proposed water supply, sewage disposal system, waste disposal, parking areas, streets, lighting systems and bathhouses (if lots for recreational vehicles are requested).
 - (5) Number of lots requested for:
 - a. Mobile homes.
 - b. Recreational vehicles.
 - (6) A statement that the applicant has read and understands this chapter and is willing and able to comply with all of its provisions.
 - (7) Signature of the proposed operator and date of submission of the application.
- (Ord. No. 166, § 8(a), 11-9-77)

Sec. 10-89. Investigation, recommendations.

- (a) Within thirty (30) days after receipt of an application for a permit required by this division, the building inspector, after consultation with the city health officer, city engineer, and such

other city and state officials as he deems necessary, shall determine whether all provisions of this article will be met.

- (1) If he determines that certain provisions of this article will not be met, he shall, within such thirty (30) days, inform the applicant of the provisions not met and the actions required of the applicant to meet all provisions of this article. If, within a reasonable time, the applicant takes the actions required by the building inspector, the building inspector shall comply with (2) below; otherwise, he shall deny the application, subject to the applicant's right to appeal such decision, as hereinafter provided.
- (2) If he determines that all provisions of this article will be met, he shall, within thirty (30) days, forward the application to the city manager, with a statement that the application is complete and ready for review by the city council.

(b) The city manager shall review the application and, at the next regular council meeting, held not sooner than ten (10) days after his receipt of application from the building inspector, submit the application and his recommendation to the city council.
(Ord. No. 166, § 8(b, c), 11-9-77)

Sec. 10-90. Hearing, issuance, term.

(a) The city council shall set a date for a public hearing on an application for a permit required by this division, advertise such hearing in a local newspaper and, after hearing, approve or disapprove the application.

(b) If approved by the city council, the building inspector shall, the next working day, issue the permit which shall be entitled "Permit for Mobile Home Park." The permit shall include the name and location of the mobile home park, the name and address of the operator, number of mobile homes authorized, number of recreational vehicles authorized; and, shall be signed and dated by the building inspector, or his designee. Such permit shall be valid for one (1) year from the date of issue.
(Ord. No. 166, § 8(d, e), 11-9-77)

Sec. 10-91. Fee.

The city shall charge the sum which is on file in the city manager's office for the issuance of an original mobile park permit and for each renewal of such permit. Any person operating a mobile home park on November 9, 1977 shall be charged the sum for an original mobile home park permit and the same sum for each renewal thereof.

(Ord. No. 166, § 8, 11-9-77)

Sec. 10-92. Display.

The operator shall post, in a conspicuous place, his mobile home park permit and shall have readily available copies of the permits for each mobile home located therein.

(Ord. No. 166, § 6(c)(6), 11-9-77)

Sec. 10-93. Renewal, denial.

Within thirty (30) days prior to the expiration of the original permit or any subsequent annual permit, the operator may, upon payment of the required renewal fee, apply for renewal of the permit for an additional one-year period, such application to be reviewed by the building inspector and considered for approval by the city manager. If the application is approved by the city manager, the building inspector shall issue a new permit which shall be dated the same date as the expiration date of the previous permit. If the application is denied by the city manager, the operator may appeal such denial in accordance with the procedure set forth in section 10-28.

(Ord. No. 166, § 8(g), 11-9-77; Ord. No. 207, § 1, 12-10-80)

Sec. 10-94. Transfer.

(a) A permit for a mobile home park shall not be transferable without approval of the city council and there shall be no refund if the permit is not used for the full year. The operator holding such permit shall notify the city manager at least fifteen (15) days prior to a change of the operator or a transfer of any interest in the ownership, other than a mortgage, or security interest.

(b) Upon written application, payment of the fee which is on file in the city manager's office, and approval by the city council, a transferee from a previous operator shall be issued a permit, for the unexpired term of the existing permit; provided, there shall be no change in the location or expansion of the existing mobile home park.

(Ord. No. 166, § 8(h, i), 11-9-77)

Sec. 10-95. Expansion.

Any expansion of an existing mobile home park shall be subject to the same requirements provided in this division for the original permit.

(Ord. No. 166, § 8(j), 11-9-77)